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The Gazette of the Democratic Socialist Republic of Sri Lanka

EXTRAORDINARY

අංක 2125/24 - 2019 මැයි මස 28 වැනි අඟහරුවාදා - 2019.05.28
No. 2125/24 - TUESDAY, MAY 28, 2019

(Published by Authority)

PART I : SECTION (I) — GENERAL

Government Notifications

PILGRIMAGES ORDINANCE

REGULATIONS made by the Minister of Internal & Home Affairs and Provincial Councils & Local Government in terms of Section 2 of Pilgrimages Ordinance (Chapter 175)

WAJIRA ABEWARDANA,
Minister of Internal & Home Affairs
and Provincial Councils &
Local Government.

Ministry of Internal & Home Affairs and Provincial Councils & Local Government,
Independence Square,
Colombo 07,
22nd May, 2019,

Regulations

1. These regulations may be cited as the regulation of Perahera of Welle Devala Wiharaya, in the Grama Niladhari's Division of Yaddhimulla, Divisional Secretary's Division of Habaraduwa, Galle District.
2. In these regulations

“Camp area” means the area described in the schedule.

“District Secretary/ Government Agent” means the Government Agent of Galle Administrative District and it also includes any officer authorized by him in terms of regulation 4.



“Medical Officer” means the Health Medical Officer in charge of the camp area.

“Pilgrim” means any person who enters and stays within the camp area for any purpose.

“Police Officer” includes any Grama Niladhari in charge of the camp area.

“Public Health Inspector” means the Public Health Inspector in charge of the camp area.

3. These regulations shall apply to the pilgrimages made on account of the Perahera of Welle Devala Wiharaya, in the Grama Niladhari's Division of Yaddhimulla, Divisional Secretary's Division of Habaraduwa, Galle District.
4. The District Secretary/ Government Agent shall have the power to authorize any public officer in writing to exercise any power vested in him and carry out any function assigned to him under this regulation.
5. (i) The District Secretary/ Government Agent shall have the power to regulate vehicular traffic or walking to or from or within the camp area,

(ii) No person shall act contrary to any lawful order given by any police officer in compliance with the instructions issued to such police officer by the District Secretary/ Government Agent for the exercise of powers vested in him under the Para (1) of this regulation.
6. No person shall bring any cattle or any other animal into the camp area without the written permission of the District Secretary/ Government Agent. However, this regulation shall not apply in instance where carts are brought and cattle are driven to a place reserved for the purpose of leaving carts and cattle, under regulation 7
7. (1) The District Secretary/ Government Agent shall have the power to reserve or Provide the following places inside the camp area :
 - a. Parking places for buses and other motor vehicles ;
 - b. Places for leaving carts and cattle ;
 - c. Separate places for the accommodation of each group of pilgrims ;
 - d. Places to rest for the pilgrims who fall sick ;
 - e. Places for begging and solicitation for charity ;
 - f. Places for displaying certain items for sale ;
 - g. Places suitable for putting up huts for various purposes ;
 - h. Places for the use of pilgrims for washing and bathing ;
 - i. Tanks, wells, water holes for the use of pilgrims for obtaining drinking water and other places providing such facilities ;
 - J. Places for other purposes the District Secretary/ Government Agent may deem necessary.
- (2) If the District Secretary/ Government Agent deems necessary and in case of any place is reserved or provided for certain purpose under Para (1) by him, action shall be taken to erecting a notice or name board stating the purpose for which the place is reserved.
- (3) (I) In case of any place is reserved or provided for certain purpose under Para (1), that place shall strictly be used for such purpose and no one shall use any other place within the camp area for such purpose.
8. If the District Secretary/ Government Agent or Medical Officer is of the view that it is required to add chlorine to any tank, wells, water holes or reservoir situated in the camp area or it is required to be closed for prevention of diseases, the District Secretary/ Government Agent or Medical Officer shall have the power to do so.

9. (1) No one shall build any hut or temporary or permanent construction or any other construction or make a new addition to existing building or any other construction for any purpose in any place within the camp area reserved or provided for certain purpose under regulation 7, except on a permit issued by the District Secretary/ Government Agent for the relevant purpose and in accordance with the conditions stipulated in such permit.
- (2) If any person builds any hut or temporary or permanent building or any other construction or make a new addition to existing building or construction contrary to the Para (I) of this regulation, subsequent to delivery of a written notice to that person, it is lawful for the District Secretary/ Government Agent to order to remove or demolish such hut or building or construction within the period of time given in the notice as the case may be.
- (3) Where any person who has been delivered a notice under Para (2) of this regulation, neglects to act in compliance with the requirements stipulated in that notice within the period stated there in or where a doubt arises as to who is the actual person to whom such notice is to be delivered, it is lawful for the District Secretary/ Government Agent to cause action to be taken to remove or demolish such hut building, construction or a new addition made to the existing building or construction as the case may be. It is also lawful for the District Secretary/ Government Agent to make arrangements to enter to any land or premises together with labourers, equipment.
10. No one shall excrete within the camp area except in a lavatory with a notice or sign stating that it is reserved for the use of pilgrims.
11. No one shall contaminate any tank, wells, water holes, reservoir, canal stream or brook located in the camp area.
12. No one shall dispose liquid or material garbage in the camp area except in a place or in a container supplied by the District Secretary/ Government Agent for this purpose.
13. (1) District Secretary/ Government Agent shall have the power to stream line the distribution of cooked meals and beverages to the pilgrims in the camp area.
- (2) No one shall disobey any lawful order to be carried out by Police Officer or a Public Health Inspector in accordance with instructions given by District Secretary/ Government Agent in the exercise of powers delegated to him under Para (I) of this regulation.
14. (1) Where any food or drink displayed or placed for sale or distribution among the pilgrims within the camp area is found to be contaminated or harmful for human consumption, the District Secretary/ Government Agent or the Medical Officer or the Public Health Inspector may announce that such food or drink is not suitable for human consumption.
- (2) No one shall sell or distribute within the camp area any food or drink announced as not suitable for human consumption under Para (1) of this regulation.
- (3) It shall be lawful for any Police Officer or Public Health Inspector to prohibit selling or distribution and destroy any food or drink announced harmful for human consumption under Para (1) of the regulation.
15. No person shall maintain a bakery, sweet stall or a place where sweet are made, eating house or Dansal in any place in the camp area including reserved or provided for any purpose under the regulation 7 unless they are maintained on a license issued by the District Secretary/ Government Agent and in accordance with the conditions stipulated there in. Every license shall be issued free of charge on recommendation of the Medical Officer or any officer authorized by such Medical Officer.

16. All bakeries, sweet stalls, places where sweets are made, eating houses and Dansal and all furniture and equipment in such place in the camp area shall be kept in hygienic condition.
17. All cakes, sweet and cooked meals displayed or placed for sale or distribution in the camp area shall be kept in showcase properly made preventing the flies from entering to the satisfaction of the Medical Officer or the Public Health Inspector.
18. No tea, coffee and milk dregs or leavings of any food or drink or waste disposed in cooking or other wastes shall be left at any place within the camp area. All such dregs or wastes shall be dumped into the container placed as provided in regulation 19. However wastes, milk dregs or any refuse have been found thrown over any place within the camp area or on the ground close by, the owner or chief occupant of such place or in case of bakery, sweet stall, place where sweets are made or eating house or 'Dansal' the license holder of such place shall be deemed to have violated provisions in this regulations unless such owner, chief occupant or license holder proves that all necessary precautions have been taken and action has been taken with proper care to prevent the commission of such offence.
19. All bakeries, sweet stalls, places where sweets are made, eating houses, Dansal and buildings or constructions used for commercial or business purpose shall be provided with a wooden, metal or plastic garbage container with a capacity of 1 1/2 cubic meters (4 1/2 cubic feet) and it shall always be closed with a wooden, metal or plastic lid unless it is used to dump or remove garbage.
20. (1) If the District Secretary/Government Agent is of the view that any bakery, sweet stall, place where sweets are made, eating house, Dansal or business place has been established or maintained in violation of regulations 16, 17, 18 or 19 in this section he shall order the authority to close down such bakery, sweet stall, place where sweets are made, eating house, Dansal or business place situated within the camp area or cancel any license with immediate effect if any license has been issued for such place.
(2) Any person who is in charge of any bakery or sweet stall or place where sweets are made or eating house or Dansal or business place shall act in accordance with the lawful directive made by the District Secretary/ Government Agent under chapter (1) of this section.
21. No person suffering from any infectious disease or contagious diseases shall enter the Camp area.
22. (1) It shall be lawful for the District Secretary/Government Agent to order the pilgrims to leave the camp area and for the District Secretary/Government Agent to determine the route of leaving and mode of transport to be used for leaving when on epidemic is spreading in such area.
(2) No person shall act against any legal order given by the District Secretary/ Government Agent under Para (1) of this section.
23. Every person suffering from any infectious disease or contagious disease within the camp area, and when a person is knowingly living together with a person suffering from any infectious disease or contagious diseases, every such person shall report it to the Medical Officer or the Public Health Inspector or any Police Officer immediately.
24. Any person who is in charge of any bakery, place where sweets are made, restaurant or Dansal within the camp area shall not allow any person whom he knows is suffering from infectious diseases or contagious disease to enter such bakery, place where sweets are made, eating house or Dansal or participate in the distribution, sale or manufacture of any material or food or drink.
25. A license holder of any bakery, sweet stall, a place where sweets are made, eating house or Dansal or an owner or chief occupant of any lodge or pilgrims' rest shall not allow any person suffering from any infectious diseases or contagious diseases to stay at anytime in such bakery, sweet stall, or place where sweets are made, eating house, Dansal lodge or pilgrims' rest as the case may be. When it is revealed that a person

suffering from any infectious diseases or contagious diseases is staying in such place the license holder or owner or chief occupant shall report it to the Medical Officer or the Public Health Officer or any Police Officer immediately.

26. No person shall donate or distribute anything for charity either by cash or by any other means within the camp area except in a place reserved or provided for begging and solicitation for charity under regulation 7.
27. No person shall light fire works or use any fire arms within the camp area without a written permission from the District Secretary/Government Agent.
28. No person shall unduly alter or remove any notice or name board displayed in any place under regulation 7 or 10.
29. It shall be lawful for the District Secretary/Government Agent, Medical Officer, Public Health Inspector or any Police Officer to,
 - (a) Enter any land or place within the camp area for the purpose of carrying out any regulation from among these regulations and,
 - (b) To construct or erect a post in any land or place within the camp area for the purpose of displaying a notice or a name board under regulation 7.
30. It shall be lawful for the District Secretary/Government Agent to cancel the following at any time if he considers that the cancellation is appropriate or it is for the benefit in the public interest.
 - (a) Any permission given under regulation 6 or regulation 27.
 - (b) Permit issued under regulation 9.
 - (c) Any license issued under regulation 15.

SCHEDULE

The margins of the land which belongs to Welle Devala Wiharaya, in the Grama Niladhari's Division of Yaddhimulla, Divisional Secretary's Division of Habaraduwa, Galle District are indicated as follows :

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| <i>North</i> | - Nariyan Ground claimed by Amarasinghe and others, Devale Thuduwegoda claimed by M. G. Jayasekara & others and allotment bearing No. C & E in the tracing ; |
| <i>South</i> | - Allotment bearing letter fin this tracing, beach and coast reserve and allotment No. C & E bearing letter B ; |
| <i>East</i> | - Devale Thuduwegoda claimed by M. G. Jayasekara & Others and allotment bearing No. C & E in this during ; |
| <i>West</i> | - The allotment No. B of this tracing and beach & coast reserve. |

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